

WRITTEN SUBMISSIONS · 16 MAR 1998

McDonald's written submissions in reply — part 1

TYPE	DATE	PARTIES
Pleadings / procedural document	16 Mar 1998	From McDonald's France

SUMMARY SHEET

Written submissions in reply — McDonald's France · 16 March 1998

Overview: first part of McDonald's France's written submissions in reply, responding to the claims of Bernard Collorafi and his companies (SEBOL, B et O, Les Pins). The brief seeks to establish the franchisee's bad faith and to have his claims rejected.

Key points

McDonald's argues that Mr Collorafi signed the Antibes Ouest agreement on 15 June 1997 while preparing the writ of summons served on 26 June, which in its view proves established bad faith. The company recalls having granted adjustments: conversion of the agreement into a three-year arrangement, a 26.3% reduction of the Antibes Nord fee on 10 June 1997. It disputes the defence of non-performance raised after the formal notices of 27 November 1997 and rejects the application of articles 7 and 8 of the ordinance of 1 December 1986. In the operative part, it claims in particular:

- an order against B et O and Mr Collorafi, jointly and severally, to pay 1,533,548.87 F in unpaid fees;
- 100,000 F in damages for abuse of process;
- 300,000 F under article 700 of the NCPC;
- a periodic penalty of 26,350 F per day and the appointment of a bailiff to record the facts.

Significance

A central document of McDonald's defence, it sets out the opposite case to the franchisee's: far from an abuse by the franchisor, a deliberate breach by the lessee-manager.

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Source: bernardcollorafi.org/en/documents/written-submissions-reply-mcdonalds-bad-faith-collorafi-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.